

Andhra Pradesh Constitution of Nagar Panchayats and Municipalities Rules, 2019

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Andhra Pradesh Constitution of Nagar Panchayats and Municipalities Rules, 2019

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Andhra Pradesh Constitution of Nagar Panchayats and Municipalities Rules, 2019

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Andhra Pradesh Constitution of Nagar Panchayats and Municipalities Rules, 2019

Published vide Notification No. G.O.Ms.No.10, Municipal Administration & Urban Development (G2) Department, dated 7.1.2019

Last Updated 12th September, 2019

G.O.Ms.No.10. - In exercise of the powers conferred by section 326 read with Clause (42-a) of section 2 and sub-section (1) of section 2-A and sub-section (1) of Section 3 of the A.P. Municipalities Act, 1965 and in supersession of Andhra Pradesh Transitional Area and Smaller Urban Areas (Fixation of Criteria Rules, 2013) issued in G.O.Ms.No.16, MA & UD Department, Dated:16.01.2013, the Governor of Andhra Pradesh hereby makes the following Rules for Constitution of Nagar Panchayats and Municipalities.

1.

Short Title.

- These Rules may be called The Andhra Pradesh Constitution of Nagar Panchayats and Municipalities Rules, 2019.

2.

Criteria for Constitution of Nagar Panchayat.

- An area may be notified as Transitional Area (Nagar Panchayat) under Clause (42-a) of section-2 of the Andhra Pradesh Municipalities Act, 1965 if the following criteria is satisfied.

(a)

Population (as per last census)

:

20,000 to 40,000

(b)

Density of population per Sq. Km

:

400

(c)

Revenue

:

Rs. 40.00 Lakhs Provided that local area with a lesser income may also be considered if it has acquired urban characteristics

(d)

Percentage of employment in Non- agriculture activities.

:

25% Provided that a local area with lesser percentage of employment in Nonagricultural activities may also be considered if it is not more than 20 Kms. away from a Municipality (District Head quarter) or Municipal Corporation

(e)

Economic importance

:

Availability of market facilities and potentialities to attract industries

(f)

Other factors

:

Local area acquiring Urban Characteristics

Provided that whenever a main urbanized Grampanchayat is proposed to be constituted as a Nagar Panchayat with merger of surrounding other village(s) of Grampanchayat(s), such village(s) shall fulfill the following condition:-

The proposed village(s) going to be merged shall not be more than 3 Kms. from the periphery of outer habitation of the main Grampanchayat to the outer Periphery of the habitation of village(s).

3.

Criteria for Constitution of Municipality .

- An area may be notified as Smaller Urban Area (Municipality) under Clause (42-a) of section-2 of the Andhra Pradesh Municipalities Act, 1965 if the following criteria is satisfied:

(a)

Population (as per last census)

:

Above 40,000 and up to 3,00,000

(b)

Density of population per Sq. Km

:

500

(c)

Revenue

:

Rs. 60.00 Lakhs Provided that local area with a lesser income may also be considered if it has acquired urban characteristics

(d)

Percentage of employment in Non- agricultural activities

:

40% Provided that a local area with lesser percentage of employment in Non-agricultural activities may also be considered if it is not more than 20 Kms. away from a Municipality (District Head quarter) or Municipal Corporation.

(e)

Economic importance

:

Availability of market facilities and potentialities to attract industries.

(f)

Other factors

:

Local area acquiring Urban Characteristics

Provided that whenever a main urbanized Gram Panchayat is proposed to be constituted as a Municipality with merger of surrounding other village(s) of Gram Panchayat(s), such village(s) shall fulfill the following condition:-

The proposed village(s) going to be merged shall not be more than 3 Kms from the periphery of outer habitation of the main Gram Panchayat to the outer Periphery of the habitation of village(s).

4.

Formulation of proposal by the District Collector.

(1)

Whenever a Gram Panchayat or Group of Gram Panchayats which have been developed and satisfy the criteria for constitution of Nagar Panchayat / Municipality, the District Collector concerned may formulate a proposal for constitution of a Panchayat or Gram Panchayats as a Nagar Panchayat or Municipality as the case may be.

(2)

The proposal formulated by the District Collector shall contain, among others, the following information in respect of the Gram Panchayat / Gram Panchayats:

i. Population as defined in clause-(27-a) of section-2 of the Andhra Pradesh Municipalities Act, 1965 and density of population in Annexure-I

ii. Note on economic importance of Gram Panchayat(s) showing availability of market facilities, industries, availability of roads, water supply, schools & colleges, medical facilities, cinema halls and other potentialities to attract industries in Annexure-II.

iii. Profile of Gram Panchayat (s) in Annexure-III.

iv. Statement showing particulars of employees working in Gram Panchayat(s) in Annexure - IV.

v. Statement showing immovable properties owned by the Gram Panchayat(s) in Annexure - V

vi. Statement showing movable properties owned by the Gram Panchayat(s) in Annexure - VI

vii. Statements showing fixed deposits and investments held by the Gram Panchayat (s) in Annexure - VII.

viii. Statement showing Demand, Collection and Balance (DCB) of taxes and non-taxes of the Gram Panchayat(s) in Annexure - VIII.

ix. Statement showing details of ongoing schemes implemented by the Gram Panchayat(s) in Annexure - IX.

- x. Statement showing work and material bills and other dues payable by the Gram Panchayat(s) in Annexure - X.
- xi. Statement showing the survey numbers included in the Gram Panchayat(s) village-wise in Annexure- XI.
- xii. Statement showing boundary description of proposed Nagar Panchayat/Municipality in Annexure- XII.
- xiii. Sketch showing the existing limits of the Gram Panchayat(s) and proposal limits of Nagar Panchayat/Municipality in Annexure-XIII

5.

Role of District Collector.

- Soon after finalization of the proposal relating to constitution of Gram Panchayat / Gram Panchayats as Nagar Panchayat / Municipality, District Collector concerned shall issue a show cause notice to the Gram Panchayat(s) concerned inviting its/their views on the proposal through District Panchayat Officer. The District Collector, after receipt of the views of the Gram Panchayat(s) in the form of a resolution and remarks of District Panchayat Officer thereon and after considering the same may take a view at his level and move the Government in Municipal Administration & Urban Development (MA & UD) Department with his recommendations through Commissioner & Director of Municipal Administration (CDMA) with the information as mentioned in Rule 5 (2).

6.

Role of Commissioner and Director of Municipal Administration.

- After receipt of the proposal from District Collector, the Commissioner & Director of Municipal Administration will scrutinize the proposal. If the proposal satisfies the criteria prescribed for constitution of Nagar Panchayat / Municipality, the Commissioner & Director of Municipal Administration shall forward the proposal to the Government in MA&UD Department with his recommendation with a suitable check slip in this matter.

7.

Processing the proposal at Government Level.

- After examination of the proposal received from Commissioner & Director of Municipal Administration, the Government in MA & UD Department and Panchayat Raj Department will take a final view about constitution of the Gram Panchayat / Gram Panchayats as Nagar Panchayat / Municipality.

8.

Consultation with Panchayat Raj Department.

- Thereafter MA & UD Department will circulate the proposal to Panchayat Raj & Rural Development (PR&RD) Department for their views in the matter. The PR&RD Department after scrutiny of the proposal will arrange to offer their views in the matter to MA & UD Department. After receipt of the views of the PR&RD Department in this matter, Government in MA & UD Department will obtain orders in circulation for constitution of Gram Panchayat/Gram Panchayat(s) as Nagar Panchayat / Municipality. An intimation will be sent to PR & RD Department about the decision of the Government in this matter.

9.

De-notification of Gram Panchayat(s).

- After receipt of the decision of the MA & UD Department, the PR & RD Department will issue a show cause notice to Gram Panchayat(s) concerned for sending the views of the Gram Panchayat(s) in the form of a resolution within ten days to the proposal for de-notifying the Gram Panchayat(s). If the Gram Panchayat passes resolution agreeing to the proposal, the PR & RD Department will take action to de-notify the Gram Panchayat. If the Gram Panchayat(s) passes or pass a resolution disagreeing to the proposal, the PR & RD Department in the Government will issue a show cause notice under Section 246(2) of A.P. Panchayat Raj Act, 1994 to the Gram Panchayat(s) giving an opportunity for explanation as to why the resolution should not be cancelled since it is against the provisions of Law for constitution of Nagar Panchayat/Municipality. Thereafter the Government consider the explanation of the Gram Panchayat(s) and issue orders cancelling the resolution of the Gram Panchayat(s) as per Section 246 of A.P. Panchayat Raj Act, 1994. After receiving the resolution of Gram Panchayat(s) agreeing for denotification of the Gram Panchayat(s) or after cancellation of the resolution of the Gram Panchayat(s), if the Gram Panchayat(s) does/do not agree for de-notification, the PR & RD Department will put up a draft notification denotifying the Gram Panchayat(s) and send the file to MA & UD Department for preparing the draft notification for constituting a Nagar Panchayat /Municipality.

10.

Issue of Notifications of PR& RD Department and MA & UD Department.

- After receipt of the file from PR & RD Department, the MA & UD Department will prepare a notification specifying the

concerned area of Gram Panchayat / Panchayats as Transitional Area / Smaller Urban Area. to show that Nagar Panchayat/Municipality is deemed to have been constituted for such area. The notifications of PR & RD Department denotifying Gram Panchayat(s) and of MA&UD Departments specifying the areas as Transitional Area / Smaller Urban Area would be finalized by the latter Department and the notifications will be issued simultaneously and on the same day. The two notifications will also be published in the Andhra Pradesh Gazette on the same day.

11.

Constitution of Nagar Panchayat / Municipality.

- After issue of notification constituting a Nagar Panchayat / Municipality by the Government, the C&DMA will forward a copy of the information received from the District Collector concerned as mentioned in Rule 5(2) to the Special Officer appointed for Nagar Panchayat / Municipality. The Special Officer shall take charge of all movable and immovable properties, fixed deposits and investments and all office records of Gram Panchayat and submit a detailed report in this matter to C&DMA along with information in Annexures- IV to XII.

Annexure - I

Population of Gram Panchayat / Gram Panchayats

Name of the Grampanchayat

Name of the Mandal

Name of the District

Population as defined in Section 2 (27a) of APM

Act. 1965.

(a) Population as per 2001 census

:

Males

:

Females

:

Total

:

Density of population

:

b) Population as per 2011 census

:

Males

:

Females

:

Total

:

Density of population :

Annexure - II

Note on economic importance

Name of the Grampanchayat

:

Name of the Mandal

:

Name of the District

:

Items to be included in the note

:

(i) Availability of market facilities

(ii) Availability of industries

(iii) Availability of roads

- (iv) Availability of water supply
- (v) Availability of schools and colleges
- (vi) Availability of medical facilities
- (vii) Availability of cinema halls
- (viii) Potentialities to attract industries
- (ix) Any item relevant to economic importance

Annexure - III

Profile of Grampanchayat (s)

Name of the Grampanchayat

:

Name of the Mandal

:

Name of the District

:

Sl.No

Item

Units

Detail

1

2

3

4

1. General

1-1

Year of Constitution as Grampanchayat.

Year

1-2

No. of Grampanchayat proposed for merge into

N.P/ Municipality

Nos.

If so, specify the names of Grampanchayats

1-3

Names of the religions included in Grampanchayat

1-4

Area

Sq. Km

1-5

Grade of the Grampanchayat

Grade

1-6

Population

2001 Census

Male Female Total

2011 Census

Male Female Total

1-7

Existing No. House holds (Gram Panchayat wise)

Nos.Nos.

1-8

Existing No. Wards (Gram Panchayat wise) Nos.

1-9

Slums

Notified

Nos.

Non-Notified

1-10

Slum population

Nos.

1-11

Annual income (incl. grants) during the last 3 years

Rs. In Lakhs

Year- Amount

Year- Amount

Year - Amount

1-12

Annual expenditure during the last 3 years

Rs. In Lakhs

Year- Amount

Year- Amount

Year - Amount

2. Civic Infrastructure

2-1

CC Roads

Length in Kms

2-2

BT Roads

Length in Kms

2-3

WBM/Metal Roads

Length in Kms

2-4

Motorable Kutcha Roads

Length in Kms

2-5

Non-Motorable Kutcha Roads

Length in Kms

2-6

Pucca Drains

Length in Kms

2-7

Kutcha Drains

Length in Kms

2-8

Street Lighting -Central Lighting/ High mast lights

Nos.

2-9

Street Lighting -Sv Lamps

Nos.

2-10

Street Lighting -Tube Lights

Nos.

2-11

Street Lighting - Bubs

Nos.

2-12

Source of Water supply

River/Canal/Borewell

2-13

Protected Water Supply Scheme available

Yes/No

2-14

If PWS is available, House Service Connections

No. of Taps

2-15

Public Taps

Nos.

3. Social Infrastructure

Hospitals

3-1

Government Hospitals

Nos.

3-2

Primary Health Centers

Nos.

3-3

Private Hospitals

Nos.

Schools

3-4

High Schools

(a) Maintained by zilla Parishad

Nos

(b) Maintained by Govt.,

Nos

(c) Private Schools

Nos

3-5

Upper Primary Schools

(a) Maintained by Mandal Parishad Nos

Nos

(b) Maintained by Govt.,

Nos

(c) Private Schools

Nos

3-6

Primary Schools

(a) Maintained by Mandal Parishad

Nos

(b) Maintained by Govt.,

Nos

(c) Private Schools

Nos

3-7

Colleges

a) Maintained by Mandal Parishad

Nos

(b) Maintained by Govt.,

Nos

Other

3-8

Educational Institutions (give details)

(a) Maintained by Mandal Parishad

Nos

(b) Maintained by Govt.,

Nos

3-9

Agriculture Market Committee Yards

Nos.

3-10

Burinal Grounds

Nos.

3-11

Vegetable Markets

Nos.

3-12

Slaughter House

Nos.

3-13

Parks and Play grounds

Nos.

3-14

Community Halls

Nos.

3-15

Anganwadi Centres

Nos.

3-16

Lakes / tanks

Nos.

3-17

Community Toilets complexes

Nos.

3-18

Industries

Nos.

3-19

Solid Waste Dumping Yard Extent

4. Immovable properties

4-1

Buildings

Nos.

4-2

Open lands

Nos. Areas in acres

4-3

Parks

Nos.

4-4

Shops owned by Grampanchayat

Nos.

4-5

Others (Specify)

Nos.

5. Movable Properties

5-1

Vehicles Type of Vehicle

Nos.

5-2

Furniture Type of Furniture

Nos.

5-3

Others (Specify)

6. Civil Society Organisations 6-1 SHGS Nos.

6-2

Voluntary Organisations

Nos.

6-3

Colony Welfare Association

Nos.

6-4

Civic Exnora Societies

Nos.

6-5

NGOS

Nos.

Signature of Panchayat Secretary/Signature of DPO

Exe. Officer grade_____

_____District

_____Grampanchayat

Annexure - IV

Statement Showing the Particulars of Employees Working in the Grampanchayat (S)

Name of the Grampanchayat

:

Name of the Mandal

:

Name of the District

:

S.No

Name of the post

No.of posts sanctioned

Scale of pay sanctioned

No. Working

No. Vacant

Proceedings/G.O No. Sanctioning the post (copy
to be attached)

Source of payment of salaries

1

2

3

4

5

6

7

8

1

Executive Officer Grade- I

2

Executive Officer Grade- II

3

Panchayat Secretary

4

Senior Assistant

5

Junior Assistant/LDC

6

Typist

7

Sanitary Inspector

8

Record Assistant

9

Bill Collector

10

Driver (Category Wise)

11

Turner

12

Fitter

13

Sanitary Maistry/Jawan

14

Attenders

15

Swepeers

16

Lineman

17

Electrician

18

Tracer

19

Any other Category(specify)

Signature of Panchayat Secretary/

Signature of DPO

Exe. Officer grade _____

_____ District

_____ Grampanchayat

Annexure - V

Statement Showing Immovable Properties Owned By The Grampanchayat (S)

Name of the Grampanchayat

:

Name of the Mandal

:

Name of the District

:

(A) Details of Lands Owned as on _____

Sl.No

Nature of Land

Location

Survey No.

Area(in acres/sq.mt)

Present use of the land

Title Document No. if any

Remarks

1

2

3

4

5

6

7

8

1

Park

2

Play Ground

3

Open Space

4

others(specify)

(B) Details of Building Owned as on _____

Sl.No

Type of Building

Location

Survey No.

Plinth Area in sft

Adjacent Area in sq.m

Present use of the Building

Document No if any

Remarks

1

2

3

4

5

6
7
8
9
1
2
3
4

(C) Details of Tanks as on _____

Sl.No
Description of the tank/pond
Location
Survey No.
Area of the Tank/Pond (Acres/Sq. Mtrs)
Whether FTL Fixed
Name of the owner of the tank
Remarks

1
2
3
4
5
6
7
8
1
2
3

Signature of Panchayat Secretary/
Signature of DPO
Exe. Officer grade _____
_____ District
_____ Grampanchayat

Annexure - VI

Statement Showing Details Of Movable Properties Owned By The Grampanchayat (S)

Name of the Grampanchayat

:

Name of the Mandal

:

Name of the District

:

(A) Details of Vechicles owned as on _____

Sl.No
Type of Vechicle (Tractor, jeep Specify)
Age of the Vehicle(in years)
Registration No.(RC book)
Engine No.
Chass is No.
Condition of Vehicle
Document No if any
Remarks

Working

Non- Working

1

2

3

4

5

6

8

9

1

2

3

(B) Details of other Movable Properties owned as on _____

Sl.No

Nature of Movable Property

Nos.

Condition

Remarks

1

2

3

4

5

1

2

3

(C) Details of Funds available as on _____

Sl.No

Nature of the Bank where Panchayat funds are
lodged

Balance in the Bank

Name of the scheme to which the funds relate

1

2

3

4

1

2

3

Signature of Panchayat Secretary/

Signature of DPO

Exe. Officer grade _____

_____ District

_____ Grampanchayat

Annexure - VII

Statement Showing Fixed Deposits And Investments Held By The Grampanchayat (S)

Name of the Grampanchayat

:

Name of the Mandal

:

Name of the District

:

Details of Deposits /FDRs/Investments

SL. No

Specify the funds from which FDR/Investment
made

FDR/Investment No.

FDR/Investment Date

Blank/ Institution Name where amount is
deposited/invested

Amount deposited/ Invested (Rs)

Amount of Interest receivable from the last
receipt till the cutoff date(Rs.)

Maturity date

Remarks

1

2

3

4

5

6

7

8

1

2

3

4

Signature of Panchayat Secretary/

Signature of DPO

Exe. Officer grade_____

_____District

_____Grampanchayat

Annexure - VIII

Statement Showing DCB of Taxes and Non-Taxes Grampanchayat (S)

Name of the Grampanchayat

:

Name of the Mandal

:

Name of the District

:

(A) Details Of The DCB For the Last Three Years

Sl.No

Year

Taxes

Non - Taxes

Demand

Collection

Balance

Percentage of collection

Demand

collection

Balance

Percentage of collection

1

2

3

4

5

6

7

8

9

10

1

2

3

Assigned Revenues

Non- Taxes

Remarks

Demand

Collection

Balance

Percentage

Demand

Collection

Balance

Percentage

11

12

13

14

15

16

17

18

19

(B) Details of Grant Received During the Last Three Years

Sl.No

Year

Name of the Grant

Name of the Scheme

Purpose

Received in the shape of cash or other form

Amount Receive

Amount of gift utilized

1

2

3

4

5

6

7

8
1
2
3
Total
(C) Details Of Gifts/contribution Received During Last Three Years
Sl.No
Year
Name of the Agency donating Gift or
Contribution
Purpose
Received in the shape of cash or other form
Amount Received
Amount of gift utilized
1
2
3
4
5
6
7
1
2
3
Total
Signature of Panchayat Secretary/
Signature of DPO
Exe. Officer grade _____
_____ District
_____ Grampanchayat
Annexure - IX
Details of Ongoing Schemes In Grampanchayat(S)
Name of the Grampanchayat
:
Name of the Mandal
:
Name of the District
:
Sl. No
Name of the Project (scheme wise)
Location of the project
Year in which sanctioned
Work order No. with date
Estimated cost
Amount already paid
Balance to be paid
Source of funds
Proposed date of completion of the project
1
2
3

4
5
6
7
8
9
10

1
2
3

Signature of Panchayat Secretary/

Signature of DPO

Exe. Officer grade_____

_____District

_____Grampanchayat

Annexure - X

Statement Showing Works/materials Bills and Other Dues Payable by Grampanchayat(S)

Name of the Grampanchayat

:

Name of the Mandal

:

Name of the District

:

Sl.No

Name of the Contractor / Supplier

Name of the work/Material supplied

Amount payable in Rs.

Purpose of the Material procured

Remarks

1
2
3
4
5
6
1
2
3
4

other dues(Specify)

Signature of Panchayat Secretary/

Signature of DPO

Exe. Officer grade_____

_____District

_____Grampanchayat

Annexure - XI

Statement Showing The Survey Numbers Included In The Grampanchayat(S) Village-Wise

Name of the Grampanchayat

:

Name of the Mandal

:

Name of the District

:

Sl.No

Name of the Village

Survey No. included

Extent (if available)

1

2

3

4

Annexure - XII

Statement Showing The Boundary Description Of Proposed Nagar Panchayat/municipality

North: Starting from _____ till it reaches _____

West: Starting from _____ till it reaches _____

South: Starting from _____ till it reaches _____

West: Starting from _____ till it reaches _____

Annexure - XIII

Sketch Showing the Existing Limits of the Gram Panchayat(S) and Proposal Limits of Nagar Panchayat/Municipality

Related AI tags, queries and research notes

Translation